

Ruling

Having considered Plaintiff Lynetta Westbrook's Motion for Relief from Deemed Requests for Admission and Sanctions, the Opposition filed by Defendant San Pablo Healthcare & Wellness Center, LLC, the supporting declarations and exhibits, the arguments of counsel, and the applicable law, the Court hereby finds good cause to make the following orders:

1. Plaintiff Lynetta Westbrook's Motion for Relief from Deemed Requests for Admission and Sanctions is **denied** .
2. The February 25, 2026 orders deeming Defendant's Requests for Admission admitted and awarding sanctions in the total amount of \$5,068.85 shall remain in full force and effect. Plaintiff is ordered to pay sanctions no later than ten (10) days from the date of entry of this order. The Court reserves jurisdiction to schedule a hearing on Defendant's Motion for Contempt for Failure to Pay Discovery Sanctions filed on March 5, 2026.
3. Plaintiff shall pay Defendant's reasonable attorneys' fees and costs incurred in opposing this motion, in an amount to be determined by the Court upon proper application by Defendant.
4. Defendant's counsel shall prepare and e-file a proposed order conforming to this ruling no later than five (5) days from the date of this order, attaching a copy of this ruling.

Law & Motion

Add On

24. 9:00 AM CASE NUMBER: C23-03161
CASE NAME: ALISCHA WILSON VS. INTEX RECREATION CORP.,
PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT
FILED BY: WILSON, ALISCHA

TENTATIVE RULING:

Summary

Plaintiff, Alischa Wilson, ("Plaintiff") on behalf of herself and all others similarly situated and aggrieved seek Preliminary Approval of a Class Action Settlement with Defendants Intex Recreation Corp., Intex Marketing Ltd., and Intex Industries (Fujian) Company, Ltd. ("Defendants"). The case involves claims made with regard to the Intex-brand Intex Kool Splash Water Slide.

The parties are to appear at the hearing on July 22, 2026 prepared to answer the Court's questions about the terms of the settlement which include the following. Other questions may arise in the course of the colloquy at the hearing.

1. If Intex knows who purchased the product, why does the claim form require proof of purchase?
2. Why is a credit being issued in some cases? Why not simply provide a cash payment?
3. Why is the release given by the class members as broad as it is? Does it release tort claims against defendants? Why?
4. What is the meaning of "Product Issue?" In Exhibit 4 it is defined as "a rip, tear, or hole along the seams of the Product that you claim existed in the Product *when it was purchased*." (See footnote 1.) But for "Benefit Option A," a claim can be made if a "Product Issue ...*occurred within 9 months* of purchase." Those seem to be saying different things. The definition in the Settlement Agreement itself seems to comport more with the latter definition but it imports the notion of "manifestation" which appears to confuse things further.
5. How many class members are expected to be able to make a claim for the refund of their cash? How many for a credit?
6. A purchaser from the website need only provide an affidavit identifying a Product Issue to be eligible for a \$100 payment; but a purchaser from another location that submits such an affidavit gets only a \$40 credit. Why?
7. If IRC is to be the fund administrator, what is the mechanism for challenging rejection of a claim under 5.C.iv?
8. Paragraph 6 is ambiguous. What does the word "recover" (which may be a typographical error) mean? If a class member bought more than one product, is she limited to only one payment/credit?
9. Have any modifications been made under paragraph 8?